

Justification for Other Than Full and Open
Competition, Extension

U.S. General Services Administration

GSA Region 06 Leasing

Heartland Regional Office

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

PROJECT NUMBER: 3MO0409

Agency Name: Geological Survey, Mine Safety and Health Administration, [REDACTED]
[REDACTED], Bureau of Land Management (USGS, MSHA, [REDACTED] BLM)

1. NATURE AND/OR DESCRIPTION OF ACTION BEING APPROVED.

The General Services Administration currently leases 83,433.00 ABOA/96,173.59 rentable square feet (RSF) of office space at U S GEO SURVEY BLDG, 1400 INDEPENDENCE RD , ROLLA, MO under lease number LMO80072 for (USGS, MSHA, [REDACTED] BLM). The current lease expires February 28, 2025. Approval is requested to negotiate a lease extension with the incumbent Lessor without full and open competition for continued occupancy at this leased location. The procedures for pursuing a lease extension are detailed in GSAR 570.405: Lease extensions.

2. DESCRIPTION OF THE SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS (INCLUDING ESTIMATED VALUE).

The government requires an extension of the current lease for 24 months to commence on March 1, 2025. The estimated cost of this lease extension is [REDACTED] per rentable square feet per year for an annual cost of [REDACTED] and a total contract value of [REDACTED].

3. IDENTIFICATION OF STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION.

41 U.S.C. 3304(a)(1): Only one responsible source and no other supplies or services will satisfy agency requirements. This statutory authority is implemented through GSAR 570.405. In accordance with GSAR 570.405, use of the sole source authority is appropriate when the government experiences a delay in acquiring replacement space.

- ☐ The agency occupying the leased space is scheduled to move into other Federally controlled space, but encounters unexpected delays in preparing the new space for occupancy
- ☐ The government encounters unexpected delays outside of its control in acquiring replacement space
- ☐ The government is consolidating various agencies and the contracting officer needs to extend the terms of some leases to establish a common expiration date
- ☒ The agency occupying the space has encountered delays in planning for a potential relocation to other federally controlled space due to documented organizational, financial, or other uncertainties.

4. DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR NATURE OF THE ACQUISITION REQUIRES THE USE OF THE AUTHORITY CITED.

It is in the best interest of the Government to remain at the current location during the extension period. The agency occupying the space has encountered delays in planning for a potential relocation to other federally

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controlled space due to documented organizational, financial, or other uncertainties. Award to other than the current Lessor would require relocation of the entire requirement and would cause (USGS, MSHA, [REDACTED] BLM) to incur move and replication costs that would not be recovered through competition.

5. DESCRIPTION OF EFFORTS MADE TO ENSURE THAT OFFERS ARE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE.

In accordance with GSAM 570.106(d) and 570.405, an advertisement is not required for extensions.

6. DEMONSTRATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT WILL BE FAIR AND REASONABLE.

Recent market research conducted by the Lease Contracting Officer in ROLLA, MO showed the rental rate within the market area ranges from [REDACTED] to [REDACTED].

Therefore, the anticipated rental rates for this lease extension of [REDACTED] per RSF, are within the current market range for this submarket and are deemed fair and reasonable by the GSA Lease Contracting Officer.

7. DESCRIPTION OF MARKET RESEARCH CONDUCTED AND THE RESULTS.

On June 2, 2023, market research was conducted using costar resulting in [REDACTED] available properties. The market research showed the rental rate within the market area ranges from [REDACTED] to [REDACTED].

8. OTHER FACTS SUPPORTING USE OF OTHER THAN FULL AND OPEN COMPETITION.

Remaining at the current location under a 24-month extension avoids a holdover and allows the Government to continue operations without disruption.

9. LIST OF SOURCES, IF ANY, THAT EXPRESSED, IN WRITING, AN INTEREST IN THE ACQUISITION.

N/A

10. STATEMENT OF ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION.

There are no systemic barriers to competition. If the agency has a continuing need for space upon lease expiration, GSA will follow all authorities, regulations, and policies applicable to lease acquisition. Should there be remaining useful life in the Government's tenant improvements, the Government will consider the cost of moving from the existing location, and the cost to build out new space when deciding whether to undergo a competitive action.

Additionally, objective scrutiny will be given to the customer agency's mission and security requirements (if applicable) to eliminate unnecessary agency space requirements that may be deemed unduly restrictive.

11. CONTRACTING OFFICER CERTIFICATION.

By signature on this Justification for Other than Full and Open Competition, the GSA Lease Contracting Officer certifies that the award of a lease extension of 24 months for LMO80072 is in the Government's best interest and that this Justification is accurate and complete to the best of the GSA Lease Contracting Officer's knowledge and belief.

[REDACTED] Date 12/20/23
[REDACTED] Lease Contracting Officer

12. PREPARER'S TECHNICAL CERTIFICATION.

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I certify that the supporting data used to form the basis of this Justification is complete and accurate to the best of my knowledge and belief.

[Redacted Signature]

Date 12/20/2023

[Redacted Name], Leasing Specialist

See GSAM 506.304(d) and (e) for appropriate signature threshold levels.

If Senior Procurement Executive (SPE) approval is required, must include signatures from Regional Contracting [Leasing] Director, Regional Counsel, and Head of Contracting Activity (HCA). Use of a separate signature page is required. Note that the threshold for SPE approval is based on aggregate contract value; therefore, it is possible that SPE approval may be required for actions below the prospectus threshold.

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APPROVING/CONCURRING OFFICIALS FOR LEASING J&A

Concurred by:

DocuSigned by:
[Redacted]
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[Redacted]
Branch Chief, East Leasing

12/20/2023
Date

Concurred by:

DocuSigned by:
[Redacted]
A5DF40F5B46B4E...
[Redacted]
Lease Acquisition Officer

12/20/2023
Date

Concurred by:

DocuSigned by:
[Redacted]
B3DB45342F53410...
[Redacted]
Acting Director, Leasing Division

12/20/2023
Date

Concurred by:

DocuSigned by:
[Redacted]
899C8D4559C5473...
[Redacted]
Legal

12/20/2023
Date

Approved by:

DocuSigned by:
[Redacted]
6A024E674D66469...
[Redacted]
Acting Regional Competition Advocate, R6

12/21/2023
Date